

HOUSE No. 615

The Commonwealth of Massachusetts

PRESENTED BY:

Hannah Kane

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to ensure the health and safety of children.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Hannah Kane</i>	<i>11th Worcester</i>	<i>1/7/2025</i>
<i>Kimberly N. Ferguson</i>	<i>1st Worcester</i>	<i>1/30/2025</i>
<i>Patrick Joseph Kearney</i>	<i>4th Plymouth</i>	<i>1/22/2025</i>

HOUSE No. 615

By Representative Kane of Shrewsbury, a petition (accompanied by bill, House, No. 615) of Hannah Kane, Kimberly N. Ferguson and Patrick Joseph Kearney that the Department of Early Education and Care promulgate regulations requiring that private child care programs ensure that license-exempt programs serving infants through kindergarten-age children comply with basic health and safety standards. Education.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 513 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to ensure the health and safety of children.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 1A of chapter 15D of the General Laws, as appearing in the 2016
2 Official Edition, is hereby amended by inserting after the definition “Preschool-aged” the
3 following definition:-

4 “Private child care program,” a program or facility operated on a regular basis as part of a
5 private, organized educational system, whether known as a child nursery, nursery school,
6 kindergarten, child play school, progressive school, child development center, preschool or
7 known under any other name, which receives children not of common parentage under 7 years of
8 age, or under 16 years of age if those children have special needs, for nonresidential custody and
9 care during part or all of the day separate from their parents. Such a program may operate before

and after school and may also operate during school vacation and holidays. Private child care program shall not include: services provided as part of a private, organized educational system to children not of common parentage above 6 years of age, or above 15 years of age if those children have special needs; programs or facilities subject to licensure by the department.

SECTION 2. Said section 1A of said chapter 15D, as so appearing, is hereby further amended by striking out, in lines 21 and 22, the words “any part of a private” and inserting in place thereof the following words:- a private child care program operated as part of a private.

SECTION 3. Said section 1A of said chapter 15D, as so appearing, is hereby further amended by inserting after the words “system; a” in line 165, the following words:- private child care program operated as.

SECTION 4. Said chapter 15D is hereby amended by inserting after section 8 the following section:-

Section 8A. (a) Every private child care program shall adopt, in accordance with regulations promulgated by the department, policies appropriate for the health and well-being of children in the nonresidential custody and care of the program. A person providing child care or support services in a private child care program shall annually complete health and safety training provided by the department.

(b) The department shall promulgate regulations necessary to carry out the provisions of this section. These regulations shall, at minimum, include appropriate standards for: annual health and safety training for staff in private child care programs; staff-to-child ratios for multiple age and size groupings; limitations on the number of infants in care at one time; and the

imposition of civil fines and sanctions. Fines authorized pursuant to this section shall not exceed a maximum fine of \$250 per violation.

(c) The department shall provide consultation to assist private child care programs in meeting requirements established under this section.

(d) The department shall conduct a comprehensive review of rules and regulations established under this section at least once every 5 years.

(e) Whenever a school committee or superintendent of schools approves a private child care program pursuant to their authority, said school committee or superintendent of schools shall notify the department in writing. A private child care program shall, 30 days prior to the closing of the program, inform in writing: (i) the school committee of the municipality in which it operates; (ii) the department.

(f) The department shall collect and disseminate information, made available through the department's web site, regarding the availability of the full diversity of child care services, including private child care programs, that will promote informed child care choices. The information made available through the department's web site shall include, at minimum: (i) information to assist families in understanding the policies and procedures for child care programs licensed or funded by the department, as well as the policies and procedures for private child care programs; (ii) a localized list of child care providers known to the department; provider, however, that for each provider included, the department shall indicate whether said provider is licensed, funded, or exempt from licensure by the department; and (iii) provider-specific information about compliance with health and safety requirements.